

NATIONAL ASSEMBLY

Socialist Republic of Vietnam
Independence – Freedom- Happiness

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NATIONAL ASSEMBLY
of the Socialist Republic of Vietnam
10th Session of the XI Legislature
(From 17 October to 29 November 2006)

LAW

ON GENDER EQUALITY

Pursuant to the 1992 Constitution of the Socialist Republic of Vietnam amended and supplemented according to the Resolution No. 51/2001/QH10 dated 25th December 2001 of the 10th Session of the X Legislature of the National Assembly.

This Law provides for gender equality.

CHAPTER I

GENERAL PROVISIONS

Article 1: Scope of adjustment

This law provides for principles of gender equality in all fields of social and family life, measures ensuring gender equality, responsibilities of agencies, organizations, families, individuals in exercising gender equality.

Article 2: Target groups

1. State institutions, political organizations, socio-political organizations, socio-political and professional organizations, social organizations, social and professional organizations, economic organizations, non-productive units, units of people's armed forces, families and Vietnamese citizens (hereinafter referred to as agencies, organizations, families and individuals).

2. Foreign agencies and organizations, international organizations operating in the territory of Vietnam, foreign individuals residing in Vietnam.

Article 3: Application of international treaties on gender equality

In case of an international treaty to which the Socialist Republic of Vietnam is a signatory contains provisions that differ from those of this law, the provisions set out in that international treaty shall be applied.

Article 4: Objectives of gender equality

The objectives of gender equality are to eliminate gender discrimination, to create equal opportunities for man and woman in socio-economic development and human resources development in order to reach substantial equality between man and woman, and to establish and enhance cooperation and mutual assistance between man and woman in all fields of social and family life.

Article 5: Glossary

In this Law, the terms below can be understood as follows:

1. *Gender* indicates the characteristics, positions and roles of man and woman in all social relationships.
2. *Sex* indicates biological characteristics of man and woman.
3. *Gender equality* indicates that man and woman have equal position and role; are given equal conditions and opportunities to develop their capacities for the development of the community, family and equally enjoy the achievement of that development.
4. *Gender stereotype* is negative and biased awareness, attitude, and assessment of the characteristics, position, role and capacity of man or woman.
5. *Gender discrimination* indicates the act of restricting, excluding, not recognizing or not appreciating the role and position of man and woman leading to inequality between man and woman in all fields of social and family life.
6. *Measures to promote gender equality* are measures aimed at ensuring substantial gender equality, set forth by the competent state agencies in cases there remains considerable disparity between man and woman concerning the roles, positions, conditions, and opportunities for man and woman to bring into full play their capacities and to enjoy the achievement of the development where the application of equal regulations for man and woman cannot remove this disparity. Measures to promote gender equality are to be implemented for a certain period of time and to end when the target on gender equality has been achieved.
7. *Incorporation of gender equality issues into the process of making legal normative documents* is the measure aimed at achieving gender equality objective by defining gender issue, forecasting the gender impact of documents, responsibilities and resources to deal with gender issues in the social relations that are regulated by legal normative documents.
8. *Gender equality activities* are activities implemented by agencies, organizations, families and individuals to achieve the gender equality objective.

9. *Gender Development Index (GDI)* is the synthetic figures reflecting the real situation of gender equality, which are calculated based on life expectancy, educational level and per capita income of man and woman.

Article 6: Basic principles on gender equality

1. Man and woman are equal in all fields of social and family life.
2. Man and woman are not discriminated in terms of gender.
3. Measures aimed at promoting gender equality are not considered gender discrimination.
4. Policies aimed at protecting and supporting mothers are not considered gender discrimination.
5. Ensuring the mainstreaming of gender equality issues into the development and implementation of laws.
6. Exercising gender equality is the responsibility of agencies, organizations, families and individuals.

Article 7: State policies on gender equality

1. To ensure gender equality in all fields of politics, economy, culture, society and family; to support and provide conditions for man and woman to bring into full play their abilities; to give them equal opportunities to take part in the process of development and to benefit from the achievements of the development.
2. To protect and support mothers during pregnancy, giving birth and upbringing children; to facilitate man and woman in sharing housework.
3. To apply appropriate measures to eliminate backward customs and habits hindering the implementation of gender equality objectives.
4. To encourage agencies, organizations, families and individuals to take part in gender equality promoting activities.
5. To support gender equality activities in the remote and mountainous areas, in areas of ethnic minority groups and areas of extremely difficult socio-economic conditions; to provide necessary supports to increase GDI in the industries, fields, and localities where GDI is lower than the average level of the entire country.

Article 8: Contents of state management on gender equality

1. To develop and implement national strategies, policies and targets on gender equality.
2. To promulgate and implement legal normative documents on gender equality.
3. To promulgate and implement measures aimed at promoting gender equality.
4. To communicate, disseminate policies and law on gender equality.
5. To build, train and foster cadres working on gender equality.

6. To inspect, examine the implementation of law on gender equality; to deal with complaints, denunciations and to handle violations against the law on gender equality.
7. To carry out statistical work, provision of information and report on gender equality.
8. To conduct international cooperation on gender equality.

Article 9: State management agency on gender equality

1. The government exercises unified state management on gender equality.
2. The ministry or the ministerial-level agency assigned by the Government is responsible before the Government in exercising state management on gender equality.
3. Ministries, ministerial-level agencies, within their mandate and authority, have responsibility to coordinate with the state management agency on gender equality as specified in section 2 of this article to exercise state management on gender equality.
4. People's Committees at all levels exercise state management on gender equality within their localities as devolved by the Government.

Article 10: Acts strictly prohibited

1. Acts impeding man and woman from exercising gender equality
2. Gender discrimination in all forms
3. Gender-based violence
4. Other acts strictly prohibited by laws.

Chapter II

GENDER EQUALITY IN ALL FIELDS OF SOCIAL AND FAMILY LIFE

Article 11: Gender equality in the field of politics

1. Man and woman are equal in participating in the state management and social activities.
2. Man and woman are equal in participating in the formulation and implementation of village covenants, community regulations, agency and organization regulations.
3. Man and woman are equal in self-nominating as candidates or in nominating candidates to the National Assembly, People's Council; and are equal in self-nominating as candidates and in nominating candidates to leading bodies of political organizations, socio-political organizations, socio-political and professional organizations, social organizations, social and professional organizations.
4. Man and woman are equal in term of professional qualifications and age when they are promoted or appointed to the same management and leader posts in agencies and organizations.

5. Measures to promote gender equality in the field of politics include:
- a) To ensure the appropriate proportion of the National Assembly female deputies and People's Council female deputies in accordance with national gender equality targets;
 - b) To ensure the appropriate proportion of women in appointing cadres to the posts in state agencies in accordance with national gender equality targets.

Article 12: Gender equality in the field of economy

1. Man and woman are equal in setting up a business, carrying out business and production activities, managing business and are equal in accessing information, capital, markets and labor sources.
2. Measures to promote gender equality in the field of economy include:
 - a) Enterprises employing many female laborers is given tax incentive and financial preferential treatment according to regulations of laws;
 - b) Female laborers in rural areas are given aid in credit and in agriculture, forestry and fishery expansion according to regulations of laws.

Article 13: Gender equality in the field of labor

1. Man and woman are equal in terms of qualifications and age in recruitment, are treated equally in the workplace regarding work, payment and bonus, social insurance, labor conditions and other working conditions.
2. Man and woman are equal in terms of qualifications and age in promotion or appointment to hold titles in the title-standard professions.
3. Measures to promote gender equality in the field of labor include:
 - a) To provide for proportion of man and woman to be recruited;
 - b) To train and enhance capacity for female employees;
 - c) Employers create safe and hygienic working condition for female labors in some hard and dangerous professions and occupations or those that have direct contact with noxious substances.

Article 14: Gender equality in the field of education and training

1. Man and woman are equal in terms of age for schooling, training and fostering courses.
2. Man and woman are equal in choosing profession, occupation for learning and training.
3. Man and woman are equal in accessing and benefiting from the policies on education, training, fostering of professional knowledge and skills.
4. Female officials, public servants bringing along their children at less than 36 months of age when participating in the training and fostering courses are given assistance and support as provided by the Government.
5. Measures to promote gender equality in the field of education and training include:

- a) To provide for the proportion of man and woman participating in the study and training;
- b) To assist female laborers in rural areas in vocational training according to regulations of laws.

Article 15: Gender equality in the field of science and technology

1. Man and woman are equal in accessing and applying science and technology.
2. Man and woman are equal in accessing training courses on science and technology, and in the dissemination of the results of scientific, technological studies, and inventions and innovations.

Article 16: Gender equality in the fields of culture, information, physical exercises and sports

1. Man and woman are equal in participating in culture, information, physical exercise and sports activities.
2. Man and woman are equal in enjoying culture, in accessing and using sources of information.

Article 17: Gender equality in the field of public health

1. Man and woman are equal in participating in education and communication activities on health care and reproductive health, and in using health services.
2. Man and woman are equal in choices and decisions to use contraceptives and measures for safe sex, and to prevent and protect against HIV/AIDS and other sexually transmitted diseases.
3. Poor women residing in remote and mountainous areas and being ethnic minorities, excluding those who pay compulsory social insurance, when giving birth to a child in accordance with the population policy, are supported as provided for by the Government.

Article 18: Gender equality in family

1. Wife and husband are equal in civil relationships and other relationships related to marriage and family.
2. Wife and husband have equal rights and duties in possessing common assets and are equal in using their common income and in deciding their family resources.
3. Wife and husband are equal in discussing, deciding to choose and use appropriate family planning measures and use their leave to take care of their sick children according to regulations of laws.
4. Boys and girls are given equal care, education and provided with equal opportunities to study, work, enjoy, entertain and develop by the family.
5. Male and female members in the family have the responsibility to share housework.

CHAPTER III

MEASURES TO ENSURE GENDER EQUALITY

Article 19: Measures to promote gender equality

1. Measures to promote gender equality include:
 - a) To provide for male and female proportion or to ensure appropriate proportion of female in participation and benefiting;
 - b) To train, foster to improve the capacity of women or men;
 - c) To support in providing conditions and opportunities for women or men;
 - d) To provide for specific criteria and conditions for women or men;
 - e) To provide for women to have the right to choose in case women have equal qualifications and criteria with men;
 - f) To provide for women to be given priority in case women have equal qualifications and criteria with men;
 - g) Measures to promote gender equality provided in article 11 section 5, article 12 section 2, article 13 section 3, article 14 section 5 of this law.

2. The National Assembly, the National Assembly's Standing Committee, the Government have the authority to stipulate measures to promote gender equality as provided in section 1 of this article, have the responsibility to review the implementation of measures to promote gender equality and to decide to end these measures when objectives of gender equality have been achieved.

Article 20: To ensure basic principles of gender equality in the improvement of legal normative documents system

1. The development, amendment and supplementation of legal normative documents must ensure basic principles of gender equality.
2. Basic principles of gender equality are important base to review the legal normative documents for amendment and supplement .

Article 21: To mainstream gender equality issues into the development of legal normative documents

1. Mainstreaming gender equality issues into the development of legal normative documents include:
 - a) To identify gender issues and measures to solve these issues in the field regulated by legal normative documents;
 - b) To forecast the impact on men and women by regulations of legal normative documents when they are promulgated;
 - c) To define responsibilities and resources to deal with gender issues within the regulation scope of legal normative documents.

2. The key drafting agency of legal normative documents has the responsibility to incorporate the gender equality issues into the documents and prepare reports on the mainstreaming of gender equality issues into the development process of legal normative documents according to the contents stipulated in section 1 of this article and in annexes of information and statistics on gender related to legal normative documents project and draft.

3. The agency that appraises legal normative documents has the responsibility to coordinate with the state management agency on gender equality to assess the mainstreaming of gender equality issues into the development of legal normative documents. Contents of assessment include:

- a) To identify gender issues in projects and draft documents;
- b) To ensure basic principles of gender equality in projects and draft documents;
- c) To assess the feasibility of the solutions to solve the gender equality problems that is subject to adjustment in projects and draft documents;
- d) To assess the implementation of mainstreaming gender equality issues into the development process of projects and draft documents according to the contents stipulated in section 1 of this article.

4. The Government provides for incorporation of gender equality issues into development of legal normative documents.

Article 22: To verify the mainstreaming of gender equality issues

1. The National Assembly Committee responsible for gender issues has the responsibility to cooperate with the Ethnic Council and other Committees to verify the incorporation of gender equality issues in the draft laws, draft ordinances, and draft resolutions before submitting to the National Assembly and the National Assembly's Standing Committee stands for consideration and approval.

2. Contents of the verification of ***the mainstreaming*** of gender equality issues include:

- a) To identify gender issues in projects and draft law documents;
- b) To ensure the basic principles of gender equality in projects and draft law documents;
- c) To verify the compliance with the procedures and sequence of assessing incorporation of gender equality issues into development of projects and draft documents;
- d) To verify the feasibility of projects, draft document to ensure gender equality.

Article 23: Information, education, communication on gender and gender equality

1. Information, education, communication on gender and gender equality are important measures to improve the awareness on gender and gender equality issues.

2. Information, education, communications on gender and gender equality are included in the school curricula and operation by agencies, organizations and community.

3. Information, education, communications on gender and gender equality are conducted through education programs, publications, broadcasts and television programs and other forms.

Article 24: Financial resources for gender equality activities

1. Financial resources for gender equality activities include:

- a) State budget;
 - b) Voluntary contributions by organizations and individuals;
 - c) Other legal sources.
2. Management and usage of financial resources for gender equality activities are to meet objectives, to be effective and in accordance with regulations of laws.

Chapter IV

RESPONSIBILITY OF AGENCIES, ORGANIZATIONS, FAMILIES AND INDIVIDUALS IN IMPLEMENTING AND ENSURING GENDER EQUALITY

Article 25: Responsibilities of the Government

1. To promulgate national strategies, policies and targets on gender equality; to annually report to the National Assembly on the implementation of national targets on gender equality.
2. To submit to the National Assembly, the Standing Committee for the promulgation of or to promulgate legal normative documents on gender equality within its competence.
3. To direct and conduct the incorporation of gender equality issues in the development of legal normative documents within its competence.
4. To implement the law on gender equality; to direct and to conduct the inspection and examination of the implementation of law on gender equality.
5. To publicize national information on gender equality; to regulate and direct the exercises of sex disaggregating of the state statistical data.
6. To cooperate with the Central Committee of Vietnam Fatherland Front and the Central Vietnam Women's Union; and to direct concerned agencies in communication, dissemination and education of the law and in raising the public awareness on gender equality.

Article 26: Responsibilities of state management agency of gender equality

1. To develop and submit to the Government on the promulgation of national strategy, policies, and targets on gender equality.
2. To develop and submit to the Government for the promulgation of or to promulgate and to instruct legal normative documents on gender equality within its competence.
3. To participate in assessing the integration of gender equality issue into development of legal normative documents.
4. To review and report to the Government on the implementation of the national targets on gender equality.
5. To take lead in coordinating with ministries and ministerial-level agencies in state management on gender equality.
6. To monitor, verify and handle law violations, complaints and denunciation on gender equality issues.

Article 27: Responsibilities of ministries and ministerial-level agencies

Within the scope of their duties and authorities, ministries and ministerial-level agencies have the following responsibilities:

1. To review the existing legal normative documents for amendment, supplementation, repeal or promulgation within their competence or to submit to the authorized agencies for amendment, supplementation, repeal and promulgation of legal normative documents to ensure gender equality within their field of management;
2. To research and recommend to the state's authorized agencies to promulgate measures to promote gender equality;
3. To coordinate with the state's management agency in charge of gender equality in assessing the gender equality situation within their field of management; to monitor, examine and handle legal violations and settle the complaints and denunciation on gender equality.

Article 28: Responsibilities of the People's Committees at all levels

1. To work out plans for the implementation of the national targets on gender equality at localities.
2. To submit to the People's Councils for promulgation or to promulgate legal normative documents on gender equality within their competence.
3. To organize the implementation of the law on gender equality at localities.
4. To monitor, verify and handle the legal violations and settle complaints and denunciation on gender equality issues.
5. To organize and provide guidance for the communication and education on gender and law on gender equality for the local people.

Article 29: Responsibilities of the Vietnam Fatherland Front and its member organizations

1. To participate in the development of policies and laws and to participate in the state management on gender equality as regulated by law.
2. To ensure gender equality in organizations.
3. To participate in supervising the implementation of the law on gender equality.
4. To communicate and mobilize people and members of the organizations to exercise gender equality.

Article 30: Responsibilities of the Vietnam's Women Union

1. To implement the regulations stated in the article 29 of this Law.
2. To conduct the activities to support women, contributing to fulfill gender equality targets.
3. To coordinate with related agencies and organizations to foster and recommend qualified women as the candidates to the National Assembly and People's Council; and to the positions of leadership and management in the political systems at all levels.
4. To exercise the functions of representing and protecting the legitimate rights and interests of women and girls as regulated by Law.
5. To implement the social criticism to policies and law on gender equality.

Article 31: Responsibilities of state agencies, political organizations, socio-political organizations in implementation of gender equality within their own agencies and organizations

1. In the tasks of organization and personnel, state agencies, political organizations, socio-political organizations have following responsibilities:

a) To ensure that male and female officials, civil servants and public employees are equal in employment, training, promotion, appointment and enjoyment of welfare;

b) To ensure officials, civil servant and public employees be evaluated basing on the principles of gender equality;

2. In organizational operation, state agencies, political organizations, socio-political organizations have following responsibilities:

a) To identify their gender equality situation; to develop and ensure the implementation of gender equality targets within their agencies, organizations and to develop the annual reports;

b) To ensure the participation of male and female officials, civil servant and public employees in the development and implementation of Laws, programs, plans and projects on economic, cultural and social development, unless there are other regulations by laws.

c) To educate cadres, officials, civil servants, laborers under their management on gender and law on gender equality;

d) To apply measures to encourage cadres, officials, civil servants and laborers to exercise gender equality in their agencies, organizations and families;

e) To facilitate the development of social welfare establishments and supportive services to decrease the burden of the house works.

Article 32: Responsibilities of other agencies and organizations in implementation of gender equality in their own organizations

1. In the task of organization and operation, agencies and organizations, which are not applicable in Article 31 of this law, have the following responsibilities:

a) To ensure the equality between men and women in their participation and benefit enjoyment.

b. To timely report or provide information on gender equality within agencies and organizations at the request of authorized agencies.

c. To propose or to participate in the development of policy and law on gender equality related to the operation of their agencies and organizations.

2. Agencies and organizations, depending on their capacities and circumstances, actively conduct or cooperate in conducting following activities to promote gender equality:

a) To organize activities to communicate knowledge on gender and law on gender equality to members of agencies, organizations and employees;

b) To assign staff in-charge of gender equality activities;

c) To conduct researches and apply research results to strengthen gender equality;

d) To provide financial resources for gender equality activities;

e) To set up appropriate network of kindergartens so that male and female laborers could harmonize productive labor and housework.

f) To support female labors who bring along their children at less than 36 months of age, to participate in the training and fostering activities.

g) To create conditions for male laborers to have full paid leave and allowances when their wives give birth.

The state encourages the implementation of activities provided for in this section.

Article 33: Responsibilities of the family

1. To create conditions for family members to raise their awareness and knowledge on gender equality and to participate in gender equality activities.
2. To educate family members to be responsible for sharing house works and to appropriately allocate house works to family members.
3. To take care of reproductive health and provide conditions to women to exercise their safe motherhood.
4. To equally treat and provide equal opportunities to sons and daughters in their study, work and participation in other activities.

Article 34: Responsibilities of citizen

Male and female citizens have the following responsibilities:

1. To study to improve knowledge and awareness of gender equality;
2. To exercise and to guide other people to exercise reasonable behaviors on gender equality;
3. To criticize and prevent behaviors of gender discrimination;
4. To monitor the implementation and ensure gender equality within community, organizations and agencies and among citizens.

Chapter V

INSPECTION, MONITOR AND HANDLE VIOLATIONS AGAINST THE LAW ON GENDER EQUALITY

Article 35: To inspect the implementation of the law on gender equality

1. The state management agency on gender equality exercises the function of inspection on gender equality.
2. Duties and authority of the inspection function on gender equality include:
 - a) To inspect the implementation of the law on gender equality;
 - b) To inspect the implementation of the national targeted program on gender equality, and measures to ensure gender equality;
 - c) To implement the tasks of handling complaints and denunciations on gender equality as regulated by this law and the law on complaints and denunciations;
 - d) To handle violations of law on gender equality as regulated by the law on handling administrative violations;
 - e) To recommend measures to ensure the implementation of the law on gender equality, and recommend amendment, supplementation of laws and policies on gender equality;
 - e) To implement other tasks as stipulated by laws.

Article 36: To monitor the implementation of the law on gender equality

1. The National Assembly, NA's Standing Committee, Ethnic Council, NA's Committees, National Assembly delegations and National Assembly members, within their extent of duties and powers, have the responsibility to monitor the implementation of law on gender equality.

2. People's Council and its members, within their extent of duties and powers, have the responsibility to monitor the implementation of the law on gender equality at local level.

Article 37: Complaints and dealing with complaints about the violation of the law on gender equality

1. Agencies, organizations, individuals have the right to complain about decisions and acts of the agencies, organizations and individuals of whom they have evident to believe that these decisions or acts violate the law on gender equality and their legitimate rights and interests.

2. Dealing with complaints about gender equality is conducted as regulated by the law on complaint and denunciation.

Article 38: Denunciation and dealing with denunciation against violations of the law on gender equality

1. Individuals have the right to denounce violation of the law on gender equality.

2. Denunciation and dealing with denunciation against violations of the law on gender equality are conducted as regulated by the law on complaint and denunciation.

Article 39: Principles to handle violations against law on gender equality

Every behavior that violates the law on gender equality must be timely detected and stopped. The handling of violations against the law on gender equality must be carried out in a prompt, just and thorough manner as regulated by laws.

Article 40: Violations of the law on gender equality in the fields of politics, economy, labor, education and training, science and technology, culture, information, sport and public health

1. Violations of the law on gender equality in the field of politics include:

a) To hinder men or women from self-nominating, being nominated as candidates to the National Assembly, People's Council, to leading bodies of political organizations, socio-political organizations, socio-political and professional organizations, social organizations, social and professional organizations because of gender bias;

b) Not to carry out or to hinder the appointment of men and women to posts of managers, leaders or professional titles because of gender bias;

c) To make and to carry out regulations that are discriminatory in terms of gender in village covenants and community conventions or in the regulations of agencies and organizations.

2. Violations of the law on gender equality in the field of economy include:

a) To hinder men and women from setting up a business, to carry out business activities because of gender bias;

b) To conduct commercial advertisements that cause adverse effects to business owners or traders of one certain gender.

3. Violations of the law on gender equality in the field of labor include:

a) To apply different criteria in recruiting male and female laborers to the same job that both male and female laborers are equally qualified capable to perform it, unless applying measures to promote gender equality;

- b) To refuse recruitment or limit recruitment of laborers, to fire or to dismiss laborers because of sex discrimination or because of her pregnancy, giving birth or raising small children;
- c) To implement discriminatory allocation of jobs between men and women leading to inequality in income or to apply different payments to laborers of the same qualifications and capacity because of gender bias.
- d) Not to carry out specific provisions for female laborers in the law on labor.

4. Violations of the law on gender equality in the field of education and training include:

- a) To provide for different ages for training and enrolling between men and women;
- b) To agitate or force other people to leave school because of sex discrimination;
- c) To refuse enrollment of those who are qualified for training and fostering courses because of sex discrimination or their pregnancy, giving birth and raising small children;
- d) To conduct career-oriented education, compilation and dissemination of textbooks that contains gender bias.

5. Violations of the law on gender equality in the field of science and technology

- a) To hinder men and women from participating in activities of science and technology;
- b) To refuse the participation of one gender in training courses on science and technology.

6. Violations of the law on gender equality in the field of culture, information and sports include:

- a) To hinder men and women from composing, criticizing literary and art, performing and participating in other cultural activities because of gender bias;
- b) To compose, circulate and authorize the publication of works in any genre or form to encourage, propagate gender inequality and gender bias;
- c) To spread thought, conduct by oneself or incite other people to conduct backward manners and customs with gender discrimination under all forms.

7. Violations of the law on gender equality in the field of public health

- a) To hinder, incite or force other people not to participate in the activities of health education because of gender bias;
- b) To choose sex for the fetus under all forms or incite and force other people to abort because of the fetus's sex.

Article 41: Violations of the law on gender equality in the family

1. To hinder members in the family who have enough qualifications under the law from participating in the determination of assets of common property of a family because of gender bias.
2. Not to allow or to hinder family members from contributing their opinion to the use of common assets of the family, from conducting income earning activities or satisfying other needs of the family because of gender bias.
3. To treat unequally family members because of gender bias .
4. To limit schooling of family members or to force family members to leave school because of gender bias.
5. To impose the realization of family work and the usage of contraceptive measures as responsibilities of members of one certain gender.

Article 42: Forms of handling violations of the law on gender equality

1. Those who commit violation of gender equality, depending on the nature and level of the violation, are subject to sanctions, or administration fines or criminal procedures.

2. Agencies, organizations, individuals whose violations of gender equality law have caused damages, have to compensate for the damages as regulated laws.

CHAPTER VI: IMPLEMENTATION PROVISIONS

Article 43: Implementation validity

This Law comes into force from **01 July 2007**.

Article 44: Implementation guidance

The Government stipulates detailed regulations and gives guidance on the implementation of this law.

This Law was adopted at the 10th session, XI Legislature of the National Assembly of the Socialist Republic of Vietnam on 29th December 2006.

Chairman of the National Assembly

Nguyen Phu Trong